

September 17, 2020



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20964

EXPIRATION DATE: 2021-09-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Stanley Black & Decker, Inc.
New Britain, CT
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of the grantee's lithium batteries in direct support of a principle business other than transportation in commerce with alternative hazard communications and training requirements. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.200 in that shipping papers are not required, § 172.602(b)(3) in that the emergency response information is not required to be provided in the form specified therein, and § 172.702(a) in that training is not required except for § 172.704(a)(1) (general awareness training).

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5. BASIS: This special permit is based on the application of Stanley Black & Decker, Inc. dated October 28, 2019, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries*</i>	9	UN3480	N/A

* Limited to lithium ion batteries manufactured and sold under Stanley Black & Decker, Inc. brand names.

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

(1) Lithium ion batteries exceed 12 kg and must be constructed with a strong impact-resistant metal, plastic, or fiberglass outer casing in accordance with § 173.185(b) (5).

(2) The outer casing must display the LITHIUM BATTERY label, the proper shipping name and UN number identified in paragraph 6, and a QR code that enables persons to access the special permit, emergency response information, safety manual, and information on the applicable HMR requirements. This information must be maintained in accordance with § 172.516(c) (6).

b. TESTING:

(1) The lithium ion batteries must be tested and meet all requirements in 49 CFR § 173.185(a).

(2) The gross weight of a battery may not exceed 460 kg. The Watt-hour rating of a battery may not exceed 100 kWh (100,000 Wh).

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c. OPERATIONAL CONTROLS:

(1) Transportation under this special permit is limited to and from sites in direct support of a principle business other than transportation (e.g., construction sites, indoor/outdoor public venues).

(2) Transportation is restricted to private motor carriage (i.e., company owned or leased) in direct support of a principle business other than transportation.

(3) Users of this special permit must comply with the safely transporting and safety training requirements described in the Portable Power Hub Safety, Operation & Maintenance Manual provided with the unit.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit, but receives a battery covered by this special permit, may transport the battery provided no modification or change is made to the battery and it is transported in conformance with this special permit and the HMR. Using the battery in accordance with the instructions provided by the grantee does not constitute a change or a modification to the battery.

b. A current copy of this special permit must be maintained at each facility where the battery is offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Private motor vehicle carriage.

10. MODAL REQUIREMENTS: A current copy of this special permit must be made available on each motor vehicle used to transport batteries covered by this special permit in the manner described in paragraph 7.a.(2).

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

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- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

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Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Pipeline and Hazardous Materials Safety
Administration, U.S. Department of Transportation, East Building
PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C.
20590.

Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at
http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm
Photo reproductions and legible reductions of this special permit
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prohibited.

PO: Kenny Herzog